

Decided On : 12.11.2025 vs State Of Himachal Pradesh & Another on 12 November, 2025

Author: Virender Singh

Bench: Virender Singh

2025:HHC:38283 IN THE HIGH COURT OF HIMACHAL PRADESH, SHIMLA Cr.MMO No. : 1025 of 2025 .

Decided on : 12.11.2025 Sumit Vasudeva & Others ...Petitioners Versus State of Himachal Pradesh & Another ...Respondents of Coram The Hon'ble Mr. Justice Virender Singh, Judge.

rt Whether approved for reporting?1 For the petitioners : Petitioners No.1 and 4, in person (Petitioners No.2, 3 and 5 appeared through Video Conferencing) with Mr. Neeraj Maniktala, Advocate.

For the respondents : Mr. H.S. Rawat, Additional Advocate General with Ms. Ranjna Patial & Ms. Avni Kochhar Mehta, Deputy Advocates General, for respondent No.1.

Respondent No.2 in person with Mr. Arvind Negi, Legal Aid Counsel.

Virender Singh, Judge (oral).

Petitioners have filed the present petition, under Section 528 of the Bharatiya Nagarik Suraksha Sanhita (hereinafter referred to as 'BNSS'), for quashing of FIR Whether Reporters of local papers may be allowed to see the judgment? Yes.

2 2025:HHC:38283 No.32 of 2025, dated 11.02.2025, (hereinafter referred to as the FIR, in question), registered with Police Station, .

Palampur, District Kangra, H.P., under Sections 498A and 34 of the Indian Penal Code, (hereinafter referred to as the 'IPC'), as well as, the proceedings resultant thereto, if any.

2. The relief of quashing has been sought on the basis of the compromise effected between the parties.

3. According to the petitioners, on the statement of respondent No.2, the FIR, in question, has been registered against them.

4. After registration of the FIR, the police has conducted the investigation and prepared the charge sheet, which is under scrutiny with Assistant Public Prosecutor, Palampur.

5. According to the petitioners, during the pendency of the case, petitioner No.1 and respondent No.2, had decided to part their ways and moved a petition for divorce, under Section 13B of the Hindu Marriage Act, on the basis of mutual consent, before the Court of learned Additional Principal Judge, Family Court, Palampur, for dissolution of marriage. In the said petition, according to 3 2025:HHC:38283 the petitioners, petitioner No.1 and respondent No.2, have made joint statements for the first motion, as well as, .

second motion. The case is now listed for final order on 15.11.2025.

6. The terms and conditions of the compromise have been reduced into writing, which are annexed with of the petition, as, Annexure P2.

7. On the basis of the above facts, a prayer has rt been made that the FIR, as well as, proceedings, resultant thereto, if any, may kindly be quashed and set aside, by allowing the petition.

8. When put to notice, the State has filed the status report, disclosing therein, that on 11.02.2025, respondent No.2, had moved a complaint to the police, mentioning therein, that she had solemnized marriage with petitioner No.1, on 26.10.2023, as per the Hindu Rites and Rituals and the entire expenditure of the marriage was borne out by her parents. After few days of the marriage, on 01.11.2023 (Karva Chauth), petitioner No.1, subjected the complainant to physical harassment and verbal abuse, as her parents failed to provide gold items to petitioner 4 2025:HHC:38283 No.5. According to the complainant, petitioners are causing mental emotional, financial and physical .

harassment for usurping the stridhan. As such, she had lodged the FIR, in question, against the petitioners.

9. The person, who, at one point of time, had levelled the allegations against the petitioners, and had of lodged the FIR, in question, appeared, before this Court and made a statement, on oath, that due to non-rt compatibility of temperament, differences have arisen between her and petitioner No.1 and thereafter, she had lodged the FIR, in question, against the petitioners. She has also deposed that the matter has been compromised between her and the petitioners, vide Compromise Deed Annexure P2.

10. In addition to this, she has deposed that since, it was not possible for her to live in the matrimonial home with petitioner No.1, as his legally wedded wife, as such, they have decided to part their ways and moved a petition for divorce, under Section 13B of the Hindu Marriage Act, on the basis of mutual consent, before the Court of learned Additional Principal Judge, Family Court, Palampur, for 5 2025:HHC:38283 dissolution of marriage. She has further deposed that in the said petition, petitioner No.1 and respondent No.2, .

have made joint statements, for the first motion, as well as, for the second motion. The case is now fixed for final order on 15.11.2025. She has also stated that she has no objection, in case, the petition is allowed, as prayed for.

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11. Similar type of statement has been made by the petitioners, on oath.

rt Petitioners No.2, 3 and 5 appeared through Video Conferencing and made the statements.

Their statements have been sent to them by the learned counsel, through e-mail and they have re-submitted the same, after signing it.

12. Heard.

13. Petitioner No.1 and respondent No.2, were married in the year 2022. Later on, compelled by the circumstances, their relations became constrained and due to the said fact, respondent No.2, has lodged, the FIR, in question.

14. As per the stand taken by the parties, since, it was not possible for petitioner No.1 and respondent No.2 to live together, as husband and wife, as such, they have 6 2025:HHC:38283 decided to part their ways, by moving a petition, under Section 13B of the Hindu Marriage Act, on the basis of .

mutual consent, before the Court of learned Principal Judge, Family Court, Palampur, for dissolution of marriage, in which, their joint statements, on first motion as well as, second motion, have been recorded and the of matter is now listed for final order on 15.11.2025.

Thereafter, the matter has been compromised, between the rt parties. The terms and conditions of the compromise, have been placed on record as Annexure P2.

15. The criminal machinery, in the present case, has been put into motion, by respondent No.2, by lodging the FIR, in question. Now, as per the stand taken by the petitioners, as well as, respondent No.2, they have compromised the matter, in view of the compromise, Annexure P2.

16. If, the statement of respondent No.2, is considered, in the light of the compromise, then, this Court is of the view that the chances of success of the prosecution case, against the petitioners, are not so bright, as, the person, who, at one point of time, had put the 7 2025:HHC:38283 criminal machinery into motion, now, in unequivocal terms, has deposed that the matter has been compromised .

and on the basis of the compromise, she does not want to continue with the case.

17. The primary purpose of the law is to maintain peace and harmony in the society. When, the petitioners of and respondent No.2 have buried all the disputes by compromising the matter, then, permitting the proceedings rt to continue, would be nothing, but, abuse of the process of law. Moreover, acceptance of the petition would also give another chance to petitioner No.1 and respondent No.2, to start their lives afresh, after forgetting their bitter past.

18. Even otherwise, acceptance of the compromise, by this Court, will save the precious judicial time of the learned trial Court, where the final report will be submitted, which, the said Court will be in a position to devote for the decision of some other serious matters, pending before it.

19. Considering all these facts, the petition is allowed and FIR No.32 of 2025, dated 11.02.2025, registered Sections 498A and 34 of the IPC, as well as, the 8 2025:HHC:38283 proceedings resultant thereto, if any, are ordered to be quashed.

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20. The compromise deed, Annexure P², and the statements of the parties, recorded today, shall form part of the judgment.

21. Pending miscellaneous applications, if any, of shall also stand disposed of accordingly.

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(Virender Singh)
Judge

November 12, 2025(ps)